

Independent Contractor Agreement

This Independent Contractor Agreement (the “Agreement”) is made and entered into by the undersigned parties: Kubera Capital Markets Ltd. (known as the “Company”), a Labuan corporation located at Suite 1307, Level 13(C), Block 4, Financial Park Complex, Jalan Merdeka, 87000 Labuan, Malaysia and **First Name Last Name** (known as the “Contractor”), an individual located at **Street Name, City, Zipcode and Country**. In consideration of the promises, rights and obligations set forth below, the parties hereby agree as follows:

1. Term

The term of this Agreement shall be effective from the date of the Contractor’s signature and continue until the such time as mutually agreed between the Company and the Contractor, unless terminated earlier as set forth in this Agreement.

2. Services

Upon acceptance of the Contractor’s qualification after successful completion of an evaluation program, the Company shall create and fund a trading account (the “Account”) and provide the Contractor with the credentials to access and trade the account.

3. Contractor Representations

3.1. The Trader is a natural person, of sound mind, legal age and legal competence.

3.2. The Trader is not relying on investment advice provided by Prop Account or any other entity in making its trading decisions.

3.3. The activities of the Trader under this Agreement are not prohibited under any law or contract to which the Trader or Prop Account is subject. In the even that such prohibitions come to light after the effective date of this Agreement, the Trader acknowledges that this Agreement may be terminated without notice.

3.4. The Trader acknowledges that the Account and trading platform are provided by a third-party broker(s) and the Trader has no privity with the brokers used by the Company to execute the trades and Trader may not contact said brokers directly regarding any trade dispute or other issue. All such matters must be directed to Prop Account to resolve.

3.5. The Trader has full power and authority to execute this Agreement and to perform its obligations hereunder. This Agreement constitutes the valid and legally binding obligation of the Trader, enforceable in accordance with its terms.

4. The Account

Upon creation of the Account, the Contractor will receive an email (the "Welcome Email") setting forth the following details:

Account Login Credentials
Allocated Capital

The Contractor accepts full responsibility for monitoring the Account to ensure that trades have been executed correctly and to ensure that no unauthorized trading is occurring in the Account. The Contractor may not give control over the Account to any other person or entity and the Contractor may not control the Account of any other Account authorized trader. The Contractor shall maintain the confidentiality of the Account credentials and prevent the unauthorized use thereof at all times. If the Contractor becomes aware of any deliberate or inadvertent disclosure, loss, theft or unauthorized use of the Account credentials, the Contractor must notify the Company immediately and request a new password.

To maintain the Account and continue as a Company authorized trader, the Contractor must, at all times, adhere to the Risk Management and Program Rules. The Risk Management and Program Rules are an integral part of this Agreement. It is the Contractor's responsibility as a trader to carefully read these Risk Management and Program Rules and to inform the Company of any questions or objections that you may have regarding them before entering a trade in the Account. By entering trading orders in the Account, the Contractor agrees, represents, warrants and certifies that the Contractor understands and accepts these Risk Management and Program Rules, as they are set forth here and as may be amended from time to time by the Company and sent to the Contractor by email or as provided to the Contractor in the Contractor's trader dashboard. Any violation thereof will result in the closing of the Contractor's account and termination as an authorized trader of the Company. Additionally, the following actions may also result in the immediate closing of your account:

- Exploiting errors or latency in the pricing and/or platform(s) provided by the Broker
- Utilizing non-public and/or insider information
- Front-running of trades placed elsewhere
- Trading in any way that jeopardizes the relationship the Company has with a broker or may result in the canceling of trades
- Trading in any way that creates regulatory issues for the Broker
- Utilizing any third-party strategy, off-the-shelf strategy or one marketed to pass evaluation accounts
- Utilizing one strategy to pass an evaluation and then utilizing a different strategy in a funded account, as determined by the Company in their discretion
- Attempting to arbitrage the Contractor's account with another account with the Company or any third-party company, as determined by the Company in its sole and absolute discretion.

4. Transmission of Orders

The Company shall have no responsibility for delays of the Contractor's transmission of orders with the Broker due to disruption, failure or malfunction of communications facilities and shall not be liable for any claims, losses, damages, costs or expenses, including attorneys' fees, to any person or entity arising other than as a direct result of the Brokers gross negligence.

5. Market Pricing, Execution, Position & Trading Limits

All market pricing and trade executions are provided by the Company. Additionally, the Company does mark up transaction costs through adjusting bid-offer spreads, markups/markdowns, commissions charges or swaps.

The Company reserves the right to limit the number of open positions. The Company may enter the Account at any time, and to revise in response to market conditions the drawdown levels at which trading in the Account will be halted. The Company reserves the right to refuse to accept any order.

6. Trading Platform and Trading Hours

The trading platform that the Company has its Accounts on and the Contractor trades on is MetaTrader 5 ("MT5"). MT5 is licensed and maintained by the Company. The trading hours are set by the Company and displayed for each financial instrument within the MT5 platform. The Company reserves the right to suspend or modify its trading hours at any time and in such an event the Company will inform the Contractor in advance on a best-efforts basis of any changes in its operating hours.

7. Compensation

Subject to providing the services as outlined above, the Contractor will be paid a percentage of the net profits generated in the trading account, as stated in Appendix A. The Contractor can request a withdrawal of the profits in the trading account at any time. Upon processing of the withdrawal request, the Company shall also withdraw its share of the gains in the trading account.

8. Relationship

The Contractor will provide the Contractor's services to the Company as an independent contractor and neither the Contractor shall be considered an employee, agent, servant, joint venture partner or partner of the Company.

Accordingly:

The Contractor agrees that the Company shall have no obligation, liability or responsibility whatsoever for the withholding, collection or payment of any taxes, employment

insurance premiums or Pension Plan contributions on any amounts paid by the Company to the Contractor or amounts paid by the Contractor to its employees or contractors.

The Contractor agrees to indemnify the Company:

in respect of any taxes (including income tax, national insurance, social security or pension contributions) and any and all other liabilities, deductions, contribution, assessment or claims in respect of the Company's performance of the Services or any payment or any benefit received by the Contractors (or any of its employees or contractors) in respect of the Services; and

against all reasonable costs, expenses and any penalty, fine or interest incurred or payable by the Company in connection with or in consequence of any such liability, deduction, contribution, assessment or claim;

any liability arising from any employment-related claim or any claim based on worker status (including reasonable costs and expenses) brought by the Contractor (or any of its employees or contractors) or any substitute against the Company arising out of or in connection with the provision of the Services, except where such claim is as a result of any act or omission of the Company.; and

against all losses, liabilities or expenses incurred by the Company as a result of: (a) a breach of any applicable laws and regulations by the Contractor (or any of its employees or contractors); (b) the willful misconduct, fraud or negligence of the Contractor.

The Contractor agrees that as an independent contractor, the Contractor will not be qualified to participate in or to receive any employee benefits that the Company may extend to its employees.

The Contractor is free to provide services to other clients, so long as such other clients are not in competition with the Company and so long as there is no interference with the Contractor's contractual obligations to the Company.

The Contractor has no authority to and will not exercise or hold itself out as having any authority to enter into or conclude any contract or to undertake any commitment or obligation for, in the name of or on behalf of the Company.

9. Representations and Warranties

The Contractor represents and warrants that it will comply with all applicable laws and regulations as well as with all business conduct and compliance guidelines established by the Company, including without limitation the provisions of the Modern Slavery Act 2015.

10. Intellectual Property and Confidentiality

All copyright, trademark, trade secret and other intellectual property rights ("IP") in and related to the Company shall remain at all times the sole and exclusive property of the Company and/or its 3rd party service providers and the Contractor shall have no right or interest in the IP, except for the right to access and use the Account as specified herein. The Contractor acknowledges that the IP is confidential and has been developed through the expenditure of substantial skill, time, effort

and money. The Contractor will protect the confidentiality of the Company and/or its 3rd party service providers. The Contractor will not publish, distribute, or otherwise make information available to third parties any information derived from or relating to the IP. The Contractor will not copy, modify, de-compile, reverse engineer, and make derivative works of the IP or in the manner in which it operates.

11. Termination

The Company can terminate this agreement at any time during the term of this agreement without notice for cause, and this shall include (but not be limited to) the Contractor failing to comply with all applicable laws and regulations as well as all business conduct and compliance guidelines established by the Company.

Nothing herein shall limit the remedies or rights to compensation that the Company may have in connection with a termination for cause and/or the conduct underlying any such termination.

12. Obligations Surviving Termination of this Agreement

All obligations to preserve the Company's Confidential Information, Intellectual Property and other warranties and representations set forth herein shall survive the termination of this agreement.

13. Entire Agreement

This Agreement represents the entire agreement between the parties and the provisions of this Agreement shall supersede all prior oral and written commitments, contracts and understandings with respect to the subject matter of this Agreement. This Agreement may be amended only by mutual written agreement of the party.

14. Modification of Terms

The Company reserves the right to modify the terms and conditions of this Agreement or the risk management and program rules at any time and effective upon notice to the Contractor. Continued use of the Account after such notice shall constitute the Contractor's acceptance thereof.

15. Indemnification

The Contractor hereby agrees to indemnify, defend and hold the Company and its officers, directors, employees, corporate affiliates, and agents harmless from any loss, damage, liability, claim, cost, awards and expenses, including but not limited to reasonable attorneys' fees, arising out of the Contractor's illegal and/or wrongful actions and/or any breach of Agreement. Without

limiting the foregoing, this indemnity clause shall apply to all allegations of wrongdoing including allegations of illegal use of insider information and all transactions requiring corrective action. If the Company is informed of any pending action or possible loss against the Contractor, the Company may set off any monies due to the Contractor in amounts sufficient to cover any pending arbitration, litigation, customer complaints, unsecured debits and unpaid expenses in connections with the Contractor's trading.

16. Governing Law and Principles of Construction

This Agreement shall be governed and construed in accordance with the laws of Labuan. If any provision in this Agreement is declared illegal or unenforceable, the provision will become void, leaving the remainder of this Agreement in full force and effect.